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(HANSARD)

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HOUSE OF COMMONS

Friday, 11th May, 1951

The House met at Eleven o'Clock

PRAYERS

[Mr. SPEAKER *in the Chair*]

PRIVATE BUSINESS

WEST RIDING COUNTY COUNCIL (GENERAL POWERS) BILL

As amended, considered; to be read the Third time.

PETITION

MEAT, FUEL AND HOUSING

Colonel Crosthwaite-Eyre (New Forest): I beg to present the first of a number of Petitions which I think you will have seen, Mr. Speaker, from the women of Hampshire. It is supported by 14,000 signatures of which 10,500 come from my own constituency and the majority of the balance from Bournemouth.

"The Humble Petition of the Women of Hampshire. Sheweth that they declare an immediate change of policy is required with regard to the administration of: Meat, Fuel and Housing. Wherefore your petitioners pray that this policy be changed forthwith. And your petitioners, as in duty bound, will ever pray, etc."

FORMOSA (GOVERNMENT POLICY)

The Secretary of State for Foreign Affairs (Mr. Herbert Morrison): With your permission, Mr. Speaker, and that of the House, I desire to make the following statement.

In the course of the debate in the House on 14th December last the Prime Minister said that the question of Formosa was one of the most difficult in the Far East. That is still the position. At the Cairo Conference in 1943 the United States, the United Kingdom and China agreed that Formosa should after the war be returned to the Republic of China. The Cairo Declaration also proclaimed the intention that Korea should in due course become free and independent. It also expressed acceptance of two principles: non-aggression and no territorial ambitions.

My right hon. Friend the Prime Minister, therefore, went on to remark in the course of the same debate that until China shows by her action that she is not obstructing fulfilment of the Cairo Declaration in respect of Korea and accepts the basic principle of that Declaration, it will be difficult to reach a satisfactory solution of this problem. His Majesty's Government are of the opinion that the objectives of the Declaration can be achieved only in the context of a genuine and satisfactory Far Eastern settlement, the first step towards which must be a settlement in Korea.

In fact, the problem of Formosa has now become an international problem in which a number of nations apart from those signatory to the Cairo and Potsdam Declarations are closely concerned. In the view of His Majesty's Government this is a question which could usefully be considered by the United Nations at the appropriate time. It is not however the urgent problem. The most pressing of the problems facing us in the Far East is that of Korea and in our view it would be premature to discuss the future of Formosa so long as the operations continue in Korea.

The question of Formosa will, however, come up in the context of the Japanese Peace Treaty. Our aim here is to secure an early Peace Treaty without allowing the difficult issue of Formosa to delay its negotiation and without attempting in the Treaty to find a final solution to an issue which must be given careful consideration later in the general context of the Far Eastern situation.

Mr. Harry Wallace: Can my right hon. Friend say whether the wishes of the people of Formosa will be taken into account?

Mr. Morrison: Yes, Sir. I think it is clearly desirable that the wishes of the inhabitants of Formosa should be taken into account.

Mr. Peter Smithers: Can the right hon. Gentleman enlighten us on the position with regard to the United States Government in this matter? Does this statement

[MR. SMITHERS.]

mean that His Majesty's Government have, in fact, failed to agree a policy with the United States or has agreement been arrived at as a result of prior discussion?

Mr. Morrison: I think the House is fully familiar with the views of the United States Government and those of His Majesty's Government which have previously been stated. I do not think there is need for anybody to apprehend acute friction at this stage.

Mr. George Thomas: Would my right hon. Friend make it quite clear that there is no change at all in the policy of the Government with regard to Formosa but merely that they will probably bring it before the United Nations?

Mr. Morrison: I think the statement I have made makes it clear that there is no change in policy from the time when the Prime Minister made the statement to the House to which I have referred.

Mr. Thomas: I am obliged.

BILL PRESENTED

BRITISH NORTH AMERICA BILL

"to amend the British North America Act, 1867," presented by Mr. Gordon-Walker; supported by Mr. Ede and Mr. Marquand; read the First time; to be read a Second time upon Tuesday, 29th May, and to be printed. [Bill 115.]

Motion made, and Question proposed, "That this House do now adjourn."—*[Mr. R. J. Taylor.]*

OWNER-OCCUPIED HOUSES (ACQUISITION)

Mr. Speaker: Before we get on to the first subject I wish to warn hon. Members that it is somewhat difficult, because it might involve legislation. I have, of course, ruled before, that statements, even when they themselves do not involve legislation, but involve the Minister speaking about legislation, must be out of order, because it is not fair to rule a Minister out of order while the hon. Member remains in order himself. I thought I would give that word of warning, because it is a difficult subject.

11.10 a.m.

Squadron Leader A. E. Cooper (Ilford, South): When I was asked to open this discussion I thought that a Ruling such as you, Mr. Speaker, have now given, might be possible. However, I think it is possible to discuss this matter without getting out of order. This subject was originally in the name of my hon. and learned Friend the Member for Ilford, North (Mr. Hutchinson). Unfortunately, he is ill and confined to bed, and is obviously unable to start this discussion. I am sure that we all regret his absence and wish him a speedy recovery to full health.

I should like to thank you, Mr. Speaker, for allowing me to open the discussion on this subject. I hope that the points I wish to make will receive some sympathy from the Parliamentary Secretary to the Ministry of Local Government and Planning, who, I understand, is to reply. In one way or another this question has been raised in this House—either by Question and answer or under the Ten Minutes Rule procedure—in an attempt to secure justice for a number of householders who are affected by the Town and Country Planning Act, 1947. The problem relates to the assessment of compensation for the compulsory acquisition of owner-occupied dwelling houses under Section 52 of the Act. That Section provides that where a public authority acquires a person's property by compulsory purchase compensation shall not, for the present, include any payment for vacant possession.

Whatever may be the justice of applying that method of assessing compensation to property which is held for investment purposes, quite different considerations apply when it is adopted in the case of dwelling houses occupied by their owners. In that case, it produces a great injustice. In its simplest form, a public authority may turn a man out of his house and may pay him compensation which is deliberately and expressly assessed at a figure which will be insufficient to enable him to purchase another house with vacant possession.

The right of a public authority to acquire property is not new. It dates back to the Towns Improvement Clauses Act, 1845, and the Land Clauses Consolidation Act of the same year. But in those two Acts very great safeguards were